

**BEFORE THE BOARD OF BEHAVIORAL HEALTH PROFESSIONALS OF
THE STATE OF IOWA**

IN THE MATTER OF Amy Hecht License No. 072360 RESPONDENT	CASE NOS.: 23-0461, 23-0462, 23-0415, 24-0399 VOLUNTARY SURRENDER OF LICENSE THROUGH CONSENT ORDER
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COME NOW the Iowa Board of Behavioral Health Professionals (“Board”) and Amy Hecht (“Respondent”) and enter into this Voluntary Surrender of License through Consent Order (“Voluntary Surrender”) pursuant to Iowa Code sections 17A.10(1), 272C.3(4), and Iowa Administrative Code rule 481-506.35.

A. JURISDICTION AND BACKGROUND

1. **Iowa License.** Respondent was issued Iowa mental health counselor license number 072360 on August 6, 2015. Respondent’s license is inactive and expired on September 30, 2024.
2. **Jurisdiction.** The Board has jurisdiction in this matter pursuant to Iowa Code chapters 17A, 147, 154D, and 272C as well as 481 Iowa Administrative Code chapters 504 and 882 (formerly 645 Iowa Administrative Code chapter 33).¹
3. **Practice Setting.** Respondent practiced in Sioux City, Iowa during the time period relevant to these allegations. Respondent currently lives in the State of Iowa.

B. STATEMENT OF CHARGES

COUNT I

¹ The Board of Behavioral Science merged into the Board of Behavioral Health Professionals and now oversees additional behavioral health professionals (beyond the marital and family therapists, mental health counselors, and behavior analysts previously governed by the Board). The previous Board of Behavioral Science’s disciplinary chapter was found at 645 Iowa Administrative Code chapter 33.

4. Respondent is charged with being convicted of an offense that directly relates to the duties and responsibilities of the profession, in violation of Iowa Administrative Code rule 481-504.2(9) (formerly Iowa Administrative Code rule 645-33.2(12)).

C. FACTUAL CIRCUMSTANCES

5. From November 2023 to October 2024, the Board received multiple complaints concerning Respondent's practice as a licensed mental health counselor, including allegations of improper or fraudulent billing practices, failure to timely communicate with clients, and failure to maintain client records in a timely and accurate manner. Respondent was criminally prosecuted relating to allegations she provided false medical codes on patients' bills to receive additional insurance reimbursement to which she was not entitled. Respondent pleaded guilty to Fraudulent Practice in the Third Degree, an aggravated misdemeanor, and Theft in the Second Degree, a class D felony in Woodbury County Case No. FECR121695.

D. SETTLEMENT AGREEMENT

6. Without admission of wrongdoing or guilt, Respondent does not contest the violations alleged in the above-stated statement of charges.

7. Respondent acknowledges she has a right to a hearing before the Board on the merits of the charges. By freely and voluntarily entering into this Voluntary Surrender, Respondent waives her right to a hearing and all attendant rights, including the right to seek judicial review. This Voluntary Surrender constitutes the final agency order in a contested case pursuant to Iowa Administrative Code rule 481-506.35.

8. Respondent acknowledges this Voluntary Surrender has the same force and effect as an order of revocation per Iowa Administrative Code rule 481-506.35(8).

9. Respondent agrees that an Assistant Attorney General may present this Voluntary

Surrender to the Board and may have *ex parte* communications with the Board while presenting it. Respondent waives any right of notice of this meeting or any right that the Respondent might have to participate in the discussion of this Voluntary Surrender among the Board and the Assistant Attorney General.

10. Respondent acknowledges the factual circumstances alleged, by virtue of their incorporation in this Voluntary Surrender, are now public and available for inspection and copying in accordance with Iowa Code chapters 22 and 272C.

11. This Voluntary Surrender shall be part of the disciplinary record and permanent licensure file of Respondent and shall be considered by the Board in determining the nature and severity of any future disciplinary action to be imposed in the event of any future violations of the laws and rules governing the practice of mental health counseling by the Respondent.

12. Respondent shall at all future times fully and promptly comply with all pertinent orders of the Board and the statutes and Board rules regulating the practice of behavior health. Failure to comply with the terms of this Voluntary Surrender shall be *prima facie* evidence of a violation of Iowa Code sections 147, 157, and 272C.3(2)(a) and shall be grounds for further disciplinary action. However, no action may be taken against Respondent for violations of this Voluntary Surrender without a hearing or waiver of a hearing.

13. This Voluntary Surrender is not binding on Respondent or the Board until it has been formally approved by a majority of the Board members.

1. In the event that this Voluntary Surrender is rejected by the Board, it shall be of no force or effect to either party and it shall not be admissible for any purpose in further proceedings in this matter.

2. If the Board approves this Voluntary Surrender, it shall fully dispose of all issues in this case.

14. Upon acceptance by both the Board and Respondent, this Voluntary Surrender shall be a public record available for inspection and copying in its entirety in accordance with the requirements of Iowa Code chapters 17A, 22, and 272C.

15. Respondent understands that the Board is required by Federal law to report this Voluntary Surrender to the National Practitioner Databank.

16. Respondent shall submit a copy of this Voluntary Surrender to all licensing boards where Respondent holds a license, whether active or not, no later than **THIRTY DAYS** from the date the Board approves this Voluntary Surrender.

CONSENT ORDER

IT IS THEREFORE ORDERED:

A. VOLUNTARY SURRENDER: Respondent voluntarily agrees to surrender her mental health counselor license. The effective date of the license surrender shall be the date this Voluntary Surrender is accepted by the Board.

B. REINSTATEMENT: Reinstatement of Respondent's Iowa license shall be governed by Iowa Code § 272C.15 and Iowa Administrative Code rule 481-506.32 (formerly 645 IAC 11.31). Respondent acknowledges that pursuant to this Voluntary Surrender, Respondent shall not be eligible to seek a new establishment license for a minimum of **FIVE YEARS** from the date from the date the Board approves this Voluntary Surrender.

WHEREFORE, the terms of this Voluntary Surrender of License through Consent Order are agreed to by the Iowa Board of Behavioral Health Professionals and Respondent.

FOR THE RESPONDENT:

Voluntarily agreed to and accepted by Amy Hecht on this 6th day of August, 2025.

Amy Hecht
By: Amy Hecht Respondent

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FOR THE BOARD OF BEHAVIORAL HEALTH PROFESSIONALS:

Voluntarily agreed to and accepted by the Board of Behavioral Health Professionals on this 2nd day of September, 2025.

Aaron L Culley, LSW
Chair
Board of Behavioral Health Professionals

Copy to:

Amy Hecht
RESPONDENT